

Jaya Ahuja v. State of U.P. & Ors.

Allahabad High Court (Lucknow Bench) · Division Bench · 25 April 2025 · 2025:AHC-LKO:23762-DB · Writ-C No. 3916 of 2025 · **Writ disposed; 4.4 indemnity application to be considered within three weeks.**

HEADNOTE

An occupant seeking a separate electricity connection is to have the application considered under clause 4.4 of the U.P. Electricity Supply Code, 2005 on submission of an indemnity bond. The Court expressed no opinion on occupancy, dispensed with notice to the husband, and directed a decision within three weeks, without conferring title or possession.

FACTUAL SUMMARY

The petitioner claimed to occupy a house standing in her mother-in-law's name and sought a separate electricity connection. Relations with her husband were strained. Counsel for the Electricity Corporation submitted that the husband was not in occupation. Notice to the husband was dispensed with, subject to his version being taken if a connection were to be granted.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant connection on indemnity bond

HOLDING

If the petitioner resides in the premises and seeks an electricity connection, the application shall be considered, subject to an indemnity bond under clause 4.4 of the Electricity Supply Code, 2005, and needful done within three weeks. The order decides neither occupancy nor title or possession, and is without prejudice to the husband's or any third party's rights and to any pending proceeding. ¶ 5-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — OCCUPANCY OF THE PREMISES

Court expressly declined to opine on occupancy. ¶ 5

NOT DECIDED — TITLE OR POSSESSION; RIGHTS OF HUSBAND OR OTHER CLAIMANTS

Order confers neither title nor possession and is without prejudice to pending proceedings. ¶ 7